

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

DECLARATION OF WOOK CHUNG, ESQ.

WOOK CHUNG, ESQ., hereby declares as follows:

1. I am an attorney at Montgomery McCracken Walker & Rhoads LLP (“MMWR”), counsel for Respondent SM Line Corporation (“SM Line”) in the above captioned matter.
2. I am a member of good standing in the Bars of the States of New York and New Jersey, and have filed an appearance in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration, which is submitted in support of SM Line’s Response to Complainant’s Motion For Determination of Claim of Privilege and Waiver of Same Concerning a Single Document Produced by Respondent.
4. Myself along with my firm MMWR were retained by SM Line in April of 2023 following the filing of Samsung Electronics America, Inc.’s (“SEA”) Complaint, which initiated these proceedings before the Federal Maritime Commission.
5. Shortly after the retention, I met virtually with SM Line’s U.S. Managing Director Mr. Kwang-Kuk Choi and SM Line’s Head of Legal & Claims Mr. Woo-Cheol Shin to discuss

SEA's Complaint. During the meeting, I suggested that SM Line should conduct an early internal risk analysis of SEA's monetary claims seeking refunds for demurrage and detention charges paid by SEA to SM Line and by SM Line to other entities on behalf of SEA.

6. MMWR did not receive any internal risk analysis from SM Line, and was not aware of whether SM Line was conducting one.

7. On the night of January 17, 2024, I was virtually meeting with Mr. Choi when I showed him SML_0156832, and informed him that counsel for SEA had asked other SM Line witnesses about this document already, but those SM Line witnesses had not recognized it. Mr. Choi recognized the document and informed me that it was the internal risk analysis SM Line had prepared as discussed at the outset of the litigation with myself and Mr. Shin.

8. On the morning of January 18, 2024, my MMWR colleague Kathleen Murphy emailed counsel for SEA, informing them that we discovered that SML_0156832 was privileged and therefore had been inadvertently disclosed to SEA. In the same email, it was requested that counsel for SEA return and/or destroy all copies of SML_0156832.

9. On January 25, 2024, I asked counsel for SEA for a meeting to discuss several outstanding discovery issues, among them the demand for return of SML_0156832. The parties were unable to resolve the dispute.

/s/Wook Chung

Wook Chung

Montgomery McCracken Walker & Rhoads LLP

427 Madison Avenue, 24th Floor

New York, New York 10022

(212) 201-1931 / (212) 867-9500

Dated: January 31, 2024.